

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: William MacLure	Team: Squad #06	CCRB Case #: 201808927	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 10/26/2018 10:46 PM	Location of Incident: East 98th Street and Farragut Avenue; 69th Precinct stationhouse	18 Mo. SOL 12/11/2020	Precinct: 69
Date/Time CV Reported Sat, 10/27/2018 12:21 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sat, 10/27/2018 12:21 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Raymond Wong	27044	965623	069 PCT
2. POM Junaid Saeed	07200	963733	069 PCT
3. POM Zureno Wilson	06484	963810	069 PCT
4. SGT Mitchell Epstein	04662	954774	069 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Junaid Saeed	Discourtesy: At East 98th Street and Farragut Avenue in Brooklyn, Police Officer Junaid Saeed spoke discourteously to § 87(2)(b)	A . Unfounded
B . POM Junaid Saeed	Force: At East 98th Street and Farragut Avenue in Brooklyn, Police Officer Junaid Saeed used physical force against § 87(2)(b)	B . Exonerated
C . POM Junaid Saeed	Abuse: At East 98th Street and Farragut Avenue in Brooklyn, Police Officer Junaid Saeed interfered with § 87(2)(b)'s use of a recording device.	C . Unsubstantiated
D . POM Junaid Saeed	Abuse: At East 98th Street and Farragut Avenue in Brooklyn, Police Officer Junaid Saeed seized § 87(2)(b)'s property.	D . Substantiated
E . POM Raymond Wong	Abuse: At East 98th Street and Farragut Avenue in Brooklyn, Police Officer Raymond Wong seized § 87(2)(b)'s property.	E . Substantiated
F . SGT Mitchell Epstein	Discourtesy: At the 69th Precinct stationhouse in Brooklyn, Sergeant Mitchell Epstein spoke discourteously to § 87(2)(b)	F . Unsubstantiated
G . POM Zureno Wilson	Abuse: At the 69th Precinct stationhouse in Brooklyn, Police Officer Zureno Wilson interfered with § 87(2)(b)'s use of a recording device.	G . Substantiated
H . POM Raymond Wong	Abuse: At the 69th Precinct stationhouse in Brooklyn, Police Officer Raymond Wong searched the vehicle in which § 87(2)(b) was an occupant.	H . Substantiated
I . POM Junaid Saeed	Abuse: At the 69th Precinct stationhouse in Brooklyn, Police Officer Junaid Saeed failed to provide § 87(2)(b) with a business card.	I . Substantiated

Officer(s)	Allegation	Investigator Recommendation
§ 87(4-b) § 87(2)(g)	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]

Case Summary

On October 27, 2018, § 87(2)(b) filed this complaint with the CCRB using the call processing system.

On October 26, 2018, at approximately 10:46 p.m., in the vicinity of East 98th Street and Farragut Avenue, in Brooklyn, PO Junaid Saeed and PO Raymond Wong stopped § 87(2)(b) for a vehicle traffic law violation and arrested him for driving with a suspended license and an open bench warrant. § 87(2)(b) who had been seated in the passenger seat, tried to remain in the passenger seat of the vehicle as the officers transported it back to the stationhouse. PO Saeed told § 87(2)(b) “Get the fuck out of the vehicle,” and “What the fuck is wrong with you?” (**Allegation A: Discourtesy, unfounded**). PO Saeed grabbed § 87(2)(b) and pulled him out of the vehicle (**Allegation B: Force, exonerated**). § 87(2)(b) was about to record the officers on his phone, but PO Saeed slapped his phone out of his hand (**Allegation C: Abuse of Authority, unsubstantiated**). PO Saeed instructed PO Wong to take the Donaldsons’ vehicle back to the 69th Precinct stationhouse (**Allegations D and E: Abuse of Authority, substantiated**).

§ 87(2)(b) later arrived at the 69th Precinct stationhouse and asked Sgt. Mitchell Epstein, who was working as the desk sergeant, to speak with the captain. Sgt. Epstein responded, “You don’t fucking ask the captain a question. That’s not the way it’s done here,” (**Allegation F: Discourtesy, unsubstantiated**). PO Saeed and PO Wong went outside to inspect § 87(2)(b)’s vehicle, which was parked in the street in front of the stationhouse. § 87(2)(b) attempted to record PO Saeed and PO Wong, but PO Zureno Wilson told § 87(2)(b) that he was not allowed to record (**Allegation G: Abuse of Authority, substantiated**). PO Wong searched the vehicle (**Allegation H: Abuse of Authority, substantiated**). § 87(2)(b) asked PO Saeed for a business card. PO Saeed attempted to provide § 87(2)(b) with a ripped piece of paper. § 87(2)(b) refused to accept the paper and requested a business card, but PO Saeed refused to provide one (**Allegation I: Abuse of Authority, substantiated**).

§ 87(2)(g), § 87(4-b)

Body worn camera (BWC) video was received for PO Saeed (Board Reviews 01 and 02) and PO Wong (Board Reviews 03 and 04).

Findings and Recommendations

Allegation (A) Discourtesy: At East 98th Street and Farragut Avenue in Brooklyn, Police Officer Junaid Saeed spoke discourteously to § 87(2)(b)

§ 87(2)(b) (Board Review 05) stated that PO Saeed told him to “Get the fuck out of the car,” and “What the fuck is wrong with you?” when § 87(2)(b) was in the front passenger seat with PO Wong in the driver seat.

PO Saeed (Board Review 06) denied that he used any profanity while speaking with § 87(2)(b).

PO Saeed’s BWC (Board Reviews 01 and 02) captured the entirety of this part of the interaction. PO Saeed did not use any profanity while speaking with § 87(2)(b).

Given that PO Saeed’s BWC did not capture him using any profanity, it is recommended that **Allegation A** be closed as **unfounded**.

Allegation (B) Force: At East 98th Street and Farragut Avenue in Brooklyn, Police Officer Junaid Saeed used physical force against § 87(2)(b)

Beginning at 05:00 in PO Saeed's BWC footage, PO Saeed tells § 87(2)(b) he has to exit the vehicle twice. PO Saeed explains that the officers are taking the vehicle back to the stationhouse and instructs § 87(2)(b) to walk there. After PO Saeed walks to the police vehicle and PO Wong gets into the driver seat of the § 87(2)(b)'s vehicle, § 87(2)(b) gets into the front passenger seat of the vehicle. PO Saeed runs to the front passenger door, opens it, and pulls § 87(2)(b) out of the vehicle.

§ 87(2)(b) stated that, after § 87(2)(b) was pulled over for a VTL violation, he was sitting in the front passenger seat of the car while PO Saeed and PO Wong were placing § 87(2)(b) into the police vehicle. PO Saeed returned to § 87(2)(b)'s vehicle, informed him that he was impounding the car, and instructed him to exit the vehicle.

§ 87(2)(b) told PO Saeed he would ride in the vehicle back to the stationhouse. PO Saeed instructed § 87(2)(b) to exit the vehicle again. PO Saeed grabbed § 87(2)(b) by the right shoulder of his shirt and pulled him out of the vehicle.

PO Saeed stated that he told § 87(2)(b) that he needed to exit the vehicle so the officers could bring it to the stationhouse. § 87(2)(b) initially complied. After § 87(2)(b) exited the vehicle, PO Saeed told PO Wong to remove the vehicle to the stationhouse. PO Wong got into the driver seat and § 87(2)(b) got into the front passenger seat. PO Saeed explained to § 87(2)(b) that he could not sit in the vehicle because it was a safety issue and instructed him to get out of the vehicle multiple times. PO Saeed grabbed § 87(2)(b)'s arm and pulled him out of the vehicle. § 87(2)(b) did not resist getting out of the vehicle once PO Saeed grabbed his arm.

PO Wong (Board Review 07) did not see how PO Saeed removed § 87(2)(b).

The reasonableness of the use of force is based upon the totality of the circumstances known by the MOS at the time of the use of force. In determining whether the use of force is reasonable, members of the service should consider, among other factors, actions taken by the subject, Patrol Guide Procedure 221-01, "Force Guidelines (Board Review 08). When a member of the service must gain compliance, control, or custody of an uncooperative subject, the member should take necessary action to protect life and personal safety of all persons present, including subjects being placed into custody, and apply no more than the reasonable force necessary to gain control, Patrol Guide Procedure 221-02, "Use of Force (Board Review 09).

§ 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegation B** be closed as **exonerated**.

Allegation (C) Abuse of Authority: At East 98th Street and Farragut Avenue in Brooklyn, Police Officer Junaid Saeed interfered with § 87(2)(b)'s use of a recording device.

§ 87(2)(b) stated that he was about to record the officers on his phone when PO Saeed pulled him out of the vehicle and knocked his phone out of his hand.

PO Saeed denied that he knocked § 87(2)(b)'s phone out of his hand and did not remember his phone ever being on the ground.

PO Wong did not see PO Saeed knock § 87(2)(b)'s phone out of his hand. This allegation was not captured on either PO Saeed nor PO Wong's BWC.

§ 87(2)(g)

Therefore, it is recommended that **Allegation C** be closed as **unsubstantiated**.

Allegation (D) Abuse of Authority: At East 98th Street and Farragut Avenue in Brooklyn, Police Officer Junaid Saeed seized § 87(2)(b)'s property.

Allegation (E) Abuse of Authority: At East 98th Street and Farragut Avenue in Brooklyn, Police Officer Raymond Wong seized § 87(2)(b)'s property.

§ 87(2)(g)

It is undisputed that PO Saeed and PO Wong removed § 87(2)(b) and § 87(2)(b)'s vehicle to the 69th Precinct stationhouse. It is undisputed that the vehicle was ultimately released to § 87(2)(b) from the stationhouse later that evening.

Both PO Saeed and PO Wong's BWC captures the § 87(2)(b) vehicle parked on the right side of the road, partially in a parking spot, but mostly in a driving lane.

§ 87(2)(b) stated that PO Saeed told him he was taking the vehicle to the stationhouse to search it because § 87(2)(b) was under arrest. PO Saeed instructed PO Wong to drive the vehicle to the stationhouse, which he did. The officers never asked § 87(2)(b) for his license. § 87(2)(b) did not understand why the officers did not ask for his license and allow him to drive the vehicle home from the location.

PO Saeed stated that when he ran the license plate for the § 87(2)(b)'s vehicle, he noticed that it was registered under a name different from that of § 87(2)(b)'s and § 87(2)(b)'s. The vehicle's make and model matched that of the registration. The only reason PO Saeed decided to remove the vehicle to the stationhouse to determine the registered owner of the vehicle. While there was a listed owner when PO Saeed ran the license plate in the police vehicle, he needed to run the vehicle in the Z-fines system, which he could not access in the police vehicle. PO Saeed confirmed that he could have called someone at the stationhouse to do a check on Z-fines for him, but stated that it would have taken longer. PO Saeed instructed PO Wong to remove the vehicle to the stationhouse, which he did. PO Saeed explained that, generally, officers will conduct a Z-fines search to determine the owner, contact them, and then ask if the driver was authorized to use the vehicle. PO Saeed denied that a vehicle search would typically be a part of the procedure for determining the owner of a vehicle.

PO Wong did not recall if PO Saeed explained why he made the decision to remove the vehicle to the stationhouse. PO Wong did not recall if the officers ever asked § 87(2)(b) for his license. PO Wong did not recall if § 87(2)(b) informed the officers that he was a licensed driver. PO Wong did not know if there was a reason that § 87(2)(b) could not have taken the vehicle home from the stop location.

In PO Saeed's BWC footage, beginning at approximately 05:20, captures PO Saeed speaking to § 87(2)(b) that vehicle. PO Saeed asks § 87(2)(b) who the vehicle belongs to, and § 87(2)(b) states that the vehicle belongs to his brother. § 87(2)(b) offers PO Saeed his license, and the registration and insurance for the vehicle. PO Saeed does not take § 87(2)(b)'s documentation. PO Saeed proceeds to

inform § 87(2)(b) that he is going to take the vehicle to the stationhouse and “check” the vehicle. § 87(2)(b) informs PO Saeed that he does not have permission to check the car. PO Saeed tells § 87(2)(b) that he has probable cause to search the entire car because § 87(2)(b) was under arrest. At approximately 08:15, § 87(2)(b) asks again why PO Saeed is going to search the vehicle and PO Saeed tells him that he has reason to search the vehicle because § 87(2)(b) is under arrest and § 87(2)(b) is not the owner of the vehicle.

Courts have held that a vehicle can be seized when there is a reasonable basis to believe that the car itself is evidence of a crime, the car cannot be operated because it is unregistered or uninspected, the car was involved in a fatal automobile accident, or the car was driven by an unlicensed driver or a driver whose license is suspended and there is no one who is legally able to drive the car, People v. Confessore, 824 N.Y.S.2d 769 (2006) (Board Review 10).

Courts have held that officers may seize an arrested defendant’s vehicle to ensure the safety of the vehicle and the general public in keeping with a community caretaking function, but not to search for evidence of further criminal activity, People v. Tardi, 28 N.Y.3d 1077 (2016) (Board Review 11).

§ 87(2)(g)

[REDACTED]

Therefore, it is recommended that **Allegations D and E** be closed as **substantiated**.

Allegation (F) Discourtesy: At the 69th Precinct stationhouse in Brooklyn, Sergeant Mitchell Epstein spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated that, upon arriving at the stationhouse, he asked Sgt. Epstein to speak with the captain. Sgt. Epstein responded, “You don’t fucking ask the captain a question. That’s not the way it’s done here.”

Sgt. Epstein (Board Review 12) did not remember having a conversation with § 87(2)(b) about speaking with a captain. Sgt. Epstein denied that he told § 87(2)(b) “You don’t fucking ask the captain a question. That’s not the way it’s done here.” Sgt. Epstein did not use any profanity while speaking with § 87(2)(b).

PO Wilson (Board Review 13) acknowledged that § 87(2)(b) asked to speak to a captain. However, PO Wilson did not remember § 87(2)(b) asking Sgt. Epstein to speak with a captain. To PO Wilson’s knowledge, Sgt. Epstein did not tell § 87(2)(b)

“You don’t fucking ask the captain a question. That’s not the way it’s done here.” PO Wilson did not recall Sgt. Epstein using any profanity while speaking with § 87(2)(b)

PO Saeed and PO Wong both did not recall § 87(2)(b) asking to speak with a captain. Neither PO Saeed nor PO Wong heard any officer tell § 87(2)(b) “You don’t fucking ask the captain a question. That’s not the way it’s done here.”

§ 87(2)(g)

Therefore, it is recommended that **Allegation F** be closed as **unsubstantiated**.

Allegation (G) Abuse of Authority: At the 69th Precinct stationhouse in Brooklyn, Police Officer Zureno Wilson interfered with § 87(2)(b)'s use of a recording device.

§ 87(2)(b) stated that he attempted to film PO Saeed and PO Wong while they were inspecting his vehicle, which was parked on the street outside the stationhouse. PO Wilson, who was also outside, told § 87(2)(b) that he could not be there while the officers were performing their duties, preventing him from recording anything. § 87(2)(b) went back inside the stationhouse.

PO Wilson denied that he went outside while § 87(2)(b) was at the stationhouse. PO Wilson did not recall if he ever told § 87(2)(b) that he could not film PO Saeed and PO Wong. PO Wilson stated that, according to his understanding of department guidelines, a civilian was not allowed to record officers searching a vehicle in police custody. PO Wilson cited “safety” as the reason civilians could not record a vehicle search.

PO Wong did not recall if § 87(2)(b) ever attempted to take a video of the officers conducting the check of the vehicle. PO Wong stated that the vehicle was parked in the street outside the stationhouse when he went to check it. PO Wong denied that any officer told § 87(2)(b) could not record officers.

Individuals have a right to lawfully observe and record police activity including searches. This right extends to individuals in public places, such as streets and sidewalks. This right to observe and record police action can be limited for reasons such as safety of officers or other members of the public, or when a violation of law is committed by the individual who is observing and recording. Officers do not threaten, intimidate, or otherwise discourage an observer from recording police officers’ activities, Patrol Guide Procedure 203-29, “When a Member of the Service Encounters an Individual Observing, Photographing, and/or Video Recording Police Activity” (Board Review 14).

§ 87(2)(g)

Therefore, it is recommended that **Allegation G** be closed as **substantiated**.

Allegation (H) Abuse of Authority: At the 69th Precinct stationhouse in Brooklyn, Police Officer Raymond Wong searched the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(g)
§ 87(2)(b) believed that PO Wong and PO Saeed were using a meter to measure the tints on the windows of the vehicle. § 87(2)(b) went inside the stationhouse while PO Wong and PO Saeed were still outside the stationhouse.

PO Wong opened the door put his head inside the vehicle, breaking the plane of the door, to conduct a quick check for guns or drugs. PO Wong did not remember what door he looked inside, but said it was just one. PO Wong did not observe any contraband inside the vehicle. PO Wong denied that he physically got into the vehicle or that an inventory search was conducted.

PO Saeed did not recall a search of the vehicle being conducted.

Sgt. Epstein believed that a search of the vehicle occurred because an inventory search is normally conducted when a vehicle is brought to the stationhouse. Sgt. Epstein did not observe a search of the vehicle.

Courts have also held that a car that is lawfully in police custody is subject to a routine inventory search to catalogue its contents, People v. Francis, 819 N.Y.S.2d 393 (2006) (Board Review 15).

The purpose of an inventory search is to protect property, ensure against unwarranted claims of theft, and protect uniformed members of the service against other dangerous instrumentalities. The uniformed member of the service should search the interior of the vehicle thoroughly, Patrol Guide Procedure 218-13, "Inventory Searches of Automobiles and Other Property" (Board Review 20).

§ 87(2)(g)
Therefore, it is recommended that **Allegation H** be closed as **substantiated**.

Allegation (I) Abuse of Authority: At the 69th Precinct stationhouse in Brooklyn, Police Officer Junaid Saeed failed to provide § 87(2)(b) with a business card.

§ 87(2)(b) stated that he requested a business card from PO Wong, which he provided. § 87(2)(b) then asked PO Saeed for a business card. PO Saeed went into an office inside the stationhouse for approximately 15 minutes. PO Saeed returned and presented § 87(2)(b) with a ripped piece of paper with something written on it. § 87(2)(b) told PO Saeed that he wanted his business card and that a ripped piece of paper would not suffice. PO Saeed told § 87(2)(b) that he could throw it in the garbage if he did not want it. § 87(2)(b) told PO Saeed to throw it in the garbage. § 87(2)(b) did not read what was on the paper because he refused to accept it.

PO Saeed stated that he voluntarily filled out a blank NYPD contact card with his last name, shield number, and precinct and gave it to § 87(2)(b). § 87(2)(b) told PO Saeed that he did not want the card. PO Saeed assumed that § 87(2)(b) wanted one that was typed up, but PO Saeed did not have any that were typed up at the time of this incident. PO Saeed did not remember what § 87(2)(b) did with the card.

PO Wong stated that § 87(2)(b) asked PO Saeed for his information. PO Saeed wrote his information on a piece of paper and gave it to § 87(2)(b). PO Wong was next to PO Saeed when he was writing his information but could not see what he wrote to see if it was legible or not. PO Wong did not recall if § 87(2)(b) asked for a business card instead of a piece of paper. PO Wong did not remember if § 87(2)(b) accepted the piece of paper.

